



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35326973

Date: JAN. 14, 2025

Appeal of California Service Center Decision

Form I-360, Petition for Amerasian, Widow(er), or Special Immigrant (Religious Worker)

The Petitioner, a religious organization, seeks to classify the Beneficiary as a special immigrant religious worker to perform services as a pastor (minister). *See* Immigration and Nationality Act (the Act) section 203(b)(4), 8 U.S.C. § 1153(b)(4). This immigrant classification allows non-profit religious organizations, or their affiliates, to employ foreign nationals as ministers, in religious vocations, or in other religious occupations, in the United States. *See* section 101(a)(27)(C)(ii) of the Act, 8 U.S.C. § 1101(a)(27)(C)(ii).

The Director of the California Service Center denied the petition on multiple grounds, concluding that the Petitioner did not establish: 1) it qualified as a bona fide non-profit religious organization or a bona fide organization affiliated with the religious denomination; 2) how it intends to compensate the Beneficiary; and 3) the Beneficiary possessed two years of qualifying religious work experience. The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter *de novo*. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon *de novo* review, we will dismiss the appeal.

I. LAW

Foreign nationals who perform full-time, compensated religious work as ministers, in religious vocations, or in religious occupations for non-profit religious organizations in the United States may be classified as special immigrant religious workers. The petitioner must establish that the foreign national beneficiary meets certain eligibility criteria, including membership in a religious denomination and continuous religious work experience for at least the two-year period before the petition filing date. *See generally* section 203(b)(4) of the Act (providing classification to qualified special immigrant religious workers as described in Section 101(a)(27)(C)(ii) of the Act).

The regulation states that a beneficiary must be “coming to work for a bona fide non-profit religious organization in the United States, or a bona fide organization which is affiliated with the religious denomination in the United States.” 8 C.F.R. § 204.5(m)(3). The regulation defines “bona fide non-profit religious organization” as a religious organization in the United States exempt from taxation as

described in section 501(c)(3) of the Internal Revenue Code of 1986 and possessing a currently valid determination letter from the Internal Revenue Service (IRS) confirming such exemption. 8 C.F.R. § 204.5(m)(5).

Moreover, 8 C.F.R. § 204.5(m)(8) requires a petitioner to include the following initial evidence relating to the petitioning organization:

(i) A currently valid determination letter from the IRS establishing that the organization is a tax-exempt organization; or

(ii) For a religious organization that is recognized as tax-exempt under a group tax-exemption, a currently valid determination letter from the IRS establishing that the group is tax-exempt; or

(iii) For a bona fide organization that is affiliated with the religious denomination, if the organization was granted tax-exempt status under section 501(c)(3) of the Internal Revenue Code of 1986, or subsequent amendment or equivalent sections of prior enactments of the Internal Revenue Code, as something other than a religious organization:

(A) A currently valid determination letter from the IRS establishing that the organization is a tax-exempt organization;

(B) Documentation that establishes the religious nature and purpose of the organization, such as a copy of the organizing instrument of the organization that specifies the purposes of the organization;

(C) Organizational literature, such as books, articles, brochures, calendars, flyers and other literature describing the religious purpose and nature of the activities of the organization; and

(D) A religious denomination certification. The religious organization must complete, sign and date a religious denomination certification certifying that the petitioning organization is affiliated with the religious denomination. The certification is to be submitted by the petitioner along with the petition.

Additionally, the petitioner must establish that the foreign national beneficiary has been a member of a religious denomination having a bona fide nonprofit religious organization in the United States for at least two years immediately preceding the date the petition is filed. 8 C.F.R. § 204.5(m)(1). The regulation at 8 C.F.R. § 204.5(m)(5) provides the following relevant definitions:

Denominal membership means membership during at least the two-year period immediately preceding the filing date of the petition, in the same type of religious denomination as the United States religious organization where the alien will work.

....

Religious denomination means a religious group or community of believers that is governed or administered under a common type of ecclesiastical government and includes one or more of the following:

- (A) A recognized common creed or statement of faith shared among the denomination's members;
- (B) A common form of worship;
- (C) A common formal code of doctrine and discipline;
- (D) Common religious services and ceremonies;
- (E) Common established places of religious worship or religious congregations; or
- (F) Comparable indicia of a bona fide religious denomination.

II. ANALYSIS

The Petitioner filed the instant petition on February 28, 2024, to classify the Beneficiary as a special immigrant religious worker (minister). Upon de novo review, we conclude that the Petitioner did not establish that it is a bona fide non-profit religious organization because it did not provide a currently valid 501(c)(3) determination letter from the IRS showing that it is a tax-exempt organization, recognized as tax-exempt under a group exemption, or affiliated with a religious denomination. As the Director stated in the denial, “[w]hile IRS regulations may automatically exempt churches as nonprofit organizations for the purpose of determining whether such an organization is required to file a federal tax return and pay taxes, USCIS regulations contain no such exemption for those organizations who seek immigration benefits under immigration laws.” In other words, to demonstrate that the Petitioner is a 501(c)(3) non-profit religious organization per 8 C.F.R. § 204.5(m)(5), it must produce a currently valid IRS determination letter regardless of whether IRS recognizes the organization as automatically tax-exempt for tax-related purposes. 8 C.F.R. § 204.5(m)(8).

Here, the Petitioner has not provided a tax-exempt determination letter specifically for the [REDACTED] [REDACTED] or a group ruling letter from the Council.¹ Although the Petitioner submitted an IRS determination letter dated August 3, 2022, it is not addressed to the Petitioner but to Transitional Leadership Council of the Global Methodist Church (“Council”). This IRS determination letter is accompanied by the Council’s tax attorney’s letter dated April 13, 2022, indicating that “churches, their integrated auxiliaries, and conventions or associations of churches” are not required to file an application to qualify as tax exempt and covered under a group exemption. The attorney states in the letter that the Council’s application for tax exempt status “is now pending with the IRS” and “[a]ssuming recognition of exemption is granted . . . the Council intends to apply for a group tax exemption under which its affiliated churches would qualify as subordinate tax exempt

¹ The Petitioner has not claimed or provided evidence that it meets the tax-exempt status as an organization affiliated with a religious denomination.

organizations.” However, the Petitioner has not submitted any documentary evidence to demonstrate that it is covered under the group exemption of the Council, or that it is affiliated or associated with the Council, as required by 8 C.F.R. § 204.5(m)(8).²

On appeal, the Petitioner submits a letter from its president who claims to be an attorney “who practices tax law.” The president writes to “confirm that the [REDACTED] [REDACTED] is an administrative and governing office of the new Global Methodist Church denomination that started on May 1, 2022.” The president further explains that “at present the IRS is not accepting new applications for group exemptions (pending the finalization of new regulations proposed by the current presidential administration)” and “the Global Methodist Church will apply for a group tax exemption under which its affiliated churches would qualify as subordinate tax-exempt organizations.” The Petitioner claims that its ability to obtain a group ruling exemption letter was restricted by the U.S. government as the IRS stopped accepting requests for group exemption letters since June 2020 pending publication of the final revenue rule, or that it provided documentation regarding “history and connection to the United Methodist Church, a large global religious denomination.” However, the Petitioner has not met its burden of proof as required under 8 C.F.R. § 204.5(m)(8) of showing a currently valid IRS tax exemption letter and we lack the authority to waive or disregard any of the Act’s requirements, as implemented by regulation. *See United States v. Nixon*, 418 U.S. 683, 695 (1974) (“So long as this regulation is extant it has the force of law.”). Therefore, we affirm the Director’s finding that the Petitioner did not demonstrate that it is a tax-exempt non-profit organization under 501(c)(3) of the Internal Revenue Code, per 8 C.F.R. § 204.5(m)(8).

Beyond the Director’s decision, we conclude that the Beneficiary has not shown that he has been a member of the same religious denomination for the last two years immediately preceding the filing of the petition. The Petitioner must demonstrate that the Beneficiary has two years of membership in the same denomination immediately preceding the filing of the petition, or from February 2022 to February 2024.

We conclude that the Petitioner has not sufficiently demonstrated that the Beneficiary’s membership in the Global Methodist Church (GMC) denomination since December 2022 is the same as his prior membership with the United Methodist Church (UMC). Initially the Petitioner checked “no” to the attestation statement that the Beneficiary has been a member of the prospective employer’s denomination for last two years. Only when the Petitioner was questioned regarding the Beneficiary’s membership in the denomination in the notice of intent to deny, the Petitioner submitted an amended employer’s attestation page changing its answer to “yes” to the same attestation statement regarding the Beneficiary’s denominational membership. The record indicates that the Global Methodist Church was established on May 1, 2022, and the Council “unanimously approved [the Beneficiary’s] membership as a clergy person in the Global Methodist Church and recognized [his] status as a transitional local pastor in the church” on December 9, 2022. Prior to this date, the Petitioner submitted evidence that the Beneficiary was a member of the [REDACTED]

² The Petitioner initially indicated that it is a bona fide non-profit religious organization with a currently valid determination letter from IRS (page 11, Part 9, Item 7 of Form I-360, Petition for Special Immigrant Religious Worker), but in response to the notice of intent to deny, the Petitioner submitted an amended page 11 of Form I-360, without selecting the appropriate box in Part 9, Item 7, to indicate whether it has a currently valid IRS determination letter establishing that it is tax-exempt, either independently or under a group tax exemption, or that it is affiliated with the religious denomination.

[redacted] having been appointed and authorized to perform all functions of the pastor in this denomination as of October 2020.

On appeal, the Petitioner asserts that the Beneficiary “was accepted as a clergy member of the Global Methodist Church on December 5, 2022” and that the GMC’s “Book of Doctrines and Discipline allows pastors from The United Methodist Church (our predecessor denomination) who agree to abide by GMC doctrine and polity to transfer into the GMC.” The Petitioner claims that the Beneficiary’s “time serving in the United Methodist Church is recognized and counted by the Global Methodist Church” and “the GMC denominational rules show that there was no break in service moving from the United Methodist Church to the GMC.” However, the Petitioner has not sufficiently shown that the United Methodist Church and the Global Methodist Church are the same religious denomination as defined in the regulation at 8 C.F.R. § 204.5(m)(5) (defining a denomination as a religious group or community of believers that is governed or administered under a common type of ecclesiastical government). The Petitioner submitted GMC’s book of discipline and codes and the history of how the Global Methodist Church split from the United Methodist Church but has not provided the required documentation such as the common creed or statement of faith, or common code of doctrine shared by both GMC and UMC. Therefore, we conclude that the Petitioner has not established that the Beneficiary has two years of membership in the same religious denomination according to 8 C.F.R. § 204.5(m)(1).

The Director also concluded that the Petitioner did not establish how it intends to compensate the Beneficiary or that the Beneficiary has two years of qualified religious experience. However, as the Petitioner has not established its eligibility for the benefit sought, we decline to reach any conclusion on these issues as it would not change the outcome of the appeal. *See INS v. Bagamasbad*, 429 U.S. 24, 25 (1976) (per curiam) (holding that agencies are not required to make “purely advisory findings” on issues that are unnecessary to the ultimate decision).

III. CONCLUSION

The Petitioner has not established, by a preponderance of the evidence, eligibility to classify the Beneficiary as a special immigrant religious worker. Specifically, the Petitioner did not demonstrate that it is qualified as a tax-exempt nonprofit religious organization and the Beneficiary has the required two years of membership in the religious denomination. It is the Petitioner’s burden to establish eligibility for the immigration benefit sought. Here, the Petitioner has not met this burden.

ORDER: The appeal is dismissed.